

Strengthening the Democratic Participation of Women Candidates in Kenya's Elections

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Introduction

The Universal Declaration of Human Rights (UDHR) 1948 provides that everyone has the right to take part in the government of his/her country, directly or through freely chosen representatives. The International Convention on Civil and Political Rights (ICCPR) further acknowledges this right and opportunity for citizens to take part in the conduct of public affairs, directly or through freely chosen representatives to vote and be elected in a democratic election and the universal and equal suffrage through a secret ballot. The African Union's African Charter on Human and Peoples' Rights acknowledges the importance of participation in public affairs as an essential element of democracy. The African Charter on Democracy, Elections, and Governance also requires the African Union member states to acknowledge people's participation as an inalienable right of the people of the continent.

Among the most important principles in the governance of public affairs that has been a subject of debate over the years in Kenya is the quest to promote participatory democracy and make the participation of women a critical aspect of the system of governance and decision-making. The protracted struggles for democratic reforms in Kenya led to the promulgation of the Kenyan Constitution 2010, with Article 10 enshrining democracy and participation of the citizens among the values and principles of the system of governance. The fundamental issues surrounding the contribution of women in the political processes, and the gains and challenges that still impede the right and position of women in the process are highlighted in this discussion.

The 2022 Kenyan polls were the third elections to be conducted after comprehensive changes brought by the Constitution 2010. The first time a woman was elected to Kenya's Parliament was in 1969, and this has been increasing over time but still, the political landscape has been predominantly male. The legal and institutional reforms have enhanced the environment for participation of women in the political discourse and governance in Kenya.

However, the Constitution only sets out a mechanism for meeting the two-thirds gender rule at the county government level and provided no such procedure for the National Assembly and the Senate. It required Parliament to enact the necessary legislation to achieve this quota within five years, but numerous attempts to pass such legislation have failed. Consequently, in the 2022 polls, the number of women elected still falls below the constitutional threshold as 30 women were elected to Parliament, representing 8.6% women representation in Parliament. This is attributed to not just absence of legislative framework but also cultural, financial, and political barriers and violence that still threatens the aspiration of women's participation in the political space.

Policy Issue

The Constitution of Kenya 2010 has laid a strong foundation for the principles of gender equity and equality in the country's political and governance structures. The Constitution encompasses provisions outlining the need to adhere to gender parity by not having more than a third of elected leaders belonging to the same gender. In addition to the constitutional provision, there have been legislations, regulations, judicial decisions, and international treaties that have contributed immensely to the gains contained in the Constitution of Kenya 2010.

Despite this progress in legal, policy, and institutional reforms, the number of women participating in the electoral process falls short of the aspirations envisaged. For instance, out of the total of over 16,000 gazetted aspirants by the Independent Electoral and Boundaries Commission (IEBC), female candidates were less than 2,000, representing 12.8%. Out of the over 22 million voters, about 49.12 per cent were female voters, which is still under-representation of women in the political environment despite the little progress made. In the 2022 general elections held on 9th August 2022, women formed the minority, comprising 24.8% of the elected leaders at the National level.

The Constitution of Kenya 2010 created 47 women representative positions as an affirmative action to increase the participation of women in political decisions, and build the profile of women in the national political arena. Additional nomination positions in the National Assembly and the Senate have been set aside for women primarily to boost the number of women and compensate for the historical marginalization of women in politics. Unfortunately, those who are elected in these positions are becoming permanent occupants of this position as most of the women representative are running for their third term contrary to the spirit of the constitution. This ought to be a one-time position as the representatives are now ready and able to run for substantive constituency election by virtue of being visible and endowed with resources to garner the requisite votes in a competitive process.

Current Interventions

When women assume more public roles, they become influential and visible, and this is likely to increase their participation in a public process. Kenya as a democratic country has made some strides in ensuring that women are part of the political process. Amendments to the Elections Act and the Political Parties Act (PPA) in 2022 have improved the regulatory environment but this is still inadequate, and the interventions lack meaningful incentives and enforcement mechanisms. Compliance among political parties and Parliament is still low.

In the 2022 polls, all the political parties put in place mechanisms to bolster the participation of women in the election. The nomination fee was lowered for women candidates relative to their male counterparts. This is a commendable initiative from the political parties. In addition, the main political parties have given very crucial party positions to women, which critical in the decision-making within the party mechanism. For instance, the United Democratic Alliance (UDA), the leading political party, had four (4) out of five (5) women candidates contesting for the position of county governor (the second tier of leadership cadre) emerging successful while Orange Democratic Party (ODM) and Wiper Democratic Movement-Kenya (WDM-K) had a woman governor each in Siaya and Machakos counties, respectively. These are the major parties that participated in the election, demonstrating that political parties have a role to play in this equation. The Kenya Women Parliamentary Association (KEWOPA), which is made up of women parliamentarians, have leadership and mentorship training for women who are aspiring to be leaders. The programme helps in encouraging women to participate in elective posts in general elections.

Gaps and Lessons

Kenya is trailing her peers within the East African Community (EAC) in women's political representation, with 21.4 per cent women members of Parliament. According to the Perline monthly report in reference to the 2017 polls, Rwandese election of 2018 had 49 out of 80 seats in the Lower House going to women, representing 61.3%. In the Ethiopian elections for 2021, with a total of 470 seats, 195 seats went to women, representing 41.5% while Uganda during the election of 2021 women garnered 188 out of 556 seats in Parliament, representing 33.8%. This is largely attributed to many challenges women face in the democratic space. Women are restricted in leadership and political participation due to structural barriers through discriminatory laws, attitudes and gender stereotypes, low level of education, lack of access to health care, and the disproportionate effect of poverty on women and capacity gap as women are less likely than men to have education, contacts and resources needed to become effective leaders. It is estimated that out of the 7.8 million poor people living below the poverty line of US\$ 1.90 per day, 4.1 million are women and 3.7 million are men, indicating a gender gap in poverty in the country, according to the Kenya Integrated Household Budget Survey (KIHBS) 2015/16. In addition, the male to female ratio stands at 0.97 and 0.95 in primary and secondary school, respectively.

The United Nations stresses the need for countries to promote women's participation in democracy and be part of decision-making. Democracy acts as an incubator for gender equality and is interlinked and, therefore, it is important to breach the gap in the democratic participation of women in elections.

Way Forward and Recommendations

For true gender equity and equality to become a reality in Kenya, as elsewhere, decades will be required to alter entrenched attitudes and customs. Nonetheless, much can be done in the short-term to meet the provisions of the Constitution and ensure that women are fairly represented in the political institutions. For Kenya to attain the aspirations envisaged in the Constitution of Kenya 2010, concerted effort is necessary that include.

- The Office of Registrar of Political Parties (ORPP) may consider establishment of policy to ensure that a proportion of public funds set aside for political parties are used to support women candidates in the electoral process.
- Civil society efforts to create an independent fund, such as those of Kenya Women Holding, are equally important as they will help support capacity building in women, learning how election processes work, and about campaign methods and financing. Civil society organizations (CSOs) to train new women candidates and provide mentorship, while also working with elected leaders to ensure that they are effective politicians. CSOs work across all sectors – such as media, conflict, political parties, and governance – and together they can build support for more women in politics.

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